

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

MARGARET ELLEN O'CONNELL,

Petitioner

VS.

MARK ANDREW HEITNER,

Respondent

Case Number: FDI-23-798529

Hearing Date: September 3, 2026

Hearing Time: 9:00 AM

Department: 404

Presiding: AI MORI

REQUEST FOR ORDER RE: ATTORNEY'S FEES AND COSTS; AND BIFURCATION OF  
VALIDITY OF PRENUPTIAL AGREEMENT; ADVANCE OF FUNDS

**TENTATIVE RULING**

**At the 9/3/2026 hearing, the Court intends to adopt the following findings and orders absent good cause shown. The parties are also ordered to appear in-person or via Zoom video at 9:00 AM on 9/3/2026 in Department 404 to: (a) select a future long-cause hearing date on the issue of the validity of the parties' premarital agreement and (b) discuss Wife's request for a \$500,000 from the Heitner O'Connell Trust account. The parties shall be prepared to explain whether there is a dispute that the funds held in the Heitner O'Connell Trust account is community property, what is the total balance of that account, and whether Husband would agree to release to Wife \$500,000 less the \$25,000 that Husband contends Wife spent between the parties' purported dates of separation.**

**If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.**

**A. Procedural History**

- 1) Petitioner Margaret O'Connell (Wife) and Respondent Mark Heitner (Husband) married on 7/21/2007. The parties disagree regarding their exact date of separation, but they agree they separated in 2023 for a marriage of approximately 15 years. The parties have no minor children. Wife is represented by Lvovich & Szucsko, P.C. Husband is represented by attorney David Lederman.
- 2) On for hearing is Wife's Request for Order filed 2/13/2026 asking the Court to award Wife \$25,000 in need-based attorney's fees and costs, permit her to take an advance of at least \$500,000 from the Heitner O'Connell Trust account (Charles Schwab xxx9317), and bifurcate and set a separate trial on the issue of the validity of the parties' premarital agreement.
- 3) On 2/13/2026, Wife filed an Income and Expense Declaration. Wife states she is 64 years old and is retired. Wife does not report any source of income. Wife states her monthly expenses total \$5,740. Wife states she has \$440,500 in cash savings and \$184,500 in easily saleable investments. Wife does not report any debts. Wife states she had paid her attorney \$6,561 to date and owes her attorney \$0.
- 4) On 4/13/2026, Wife filed a Notice of Errata to which her declaration is attached. Wife states that the cash savings and easily saleable investments that she lists in her Income and Expense Declaration are her share of the proceeds from the sale of the marital residence. Wife states that to date she has paid the following sums to the following law firms: \$11,600 to Schoenberg Family Law Group, P.C., \$54,400 to Robbins Family Law and \$20,000 to Lvovich & Szucsko. Wife states that, to date, she has not received an award for need-based attorney's fees, although Husband was ordered in December 2024 to pay her \$13,563 as a sanction for his abuse of the discovery process. Wife further seeks an advance of community property in the amount of at least \$500,000 from the Heitner O'Connell Trust account (Charles Schwab xxx9317). Wife states that after she told Husband that she wanted a divorce, he immediately moved community funds into his personal account to which she has no access and it took several months before he agreed to return the funds. Wife states that she may need a forensic accountant to verify that he

1 divided the money evenly. Wife states, "I want to be sure I preserve as much of my share  
2 of the community funds as possible, and I do not want to financially be at Respondent's  
3 mercy."

4 5) On 6/9/2026, a Stipulation and Order was filed wherein the parties agreed to continue the  
5 hearing on Wife's 2/13/2026 Request for Order to 9/3/2026 and also stipulated to  
6 bifurcate and set a separate trial on the issue of the validity of the parties' premarital  
7 agreement.

8 6) On 8/21/2026, Husband filed a Responsive Declaration. Husband requests that until the  
9 Court has adjudicated the validity and enforceability of the Premarital Agreement as well  
10 as the parties' date of separation, the Court should refrain from ordering him to distribute  
11 or advance funds from assets that he contends are his separate property under the  
12 agreement. Husband also states that between 3/31/2023 (Husband's purported date of  
13 separation) and 6/26/2023 (Wife's purported date of separation), Wife withdrew or spent  
14 approximately \$25,000 from the parties' joint account for her own purpose, including  
15 plastic surgery and the purchase of a computer. Husband states that Wife should be  
16 required to account for those funds before ordering any additional advance. Husband also  
17 states that the parties had planned to live in London following his retirement. Husband  
18 states the Court should consider that, after the parties' separation, he had to incur \$76,000  
19 in tuition expenses to remain living in London because he could no longer rely on his  
20 marriage to Wife as a basis for residing in London. Husband further asks the Court to  
21 consider that Wife worked as a professional organizer during the marriage and charged  
22 \$150 - \$200 per hour for her services. Husband states to his knowledge Wife does not  
23 have any condition that prevents her from resuming this work or other employment  
24 consistent with her skills and experience. Husband also states that Wife is nearing the age  
25 she may qualify for Social Security benefits and may already be eligible to claim reduced  
26 benefits. Husband states that during marriage, he earned \$150,000 per year and that he is  
27 now retired. Husband states that his income in 2025 was \$48,587 from all sources,  
28 including social security.  
29

1 7) On 8/21/2026, Husband filed an Income and Expense Declaration. Husband states that he  
2 is 71 years old and has been retired since 2023. Husband states he earns on average  
3 \$4,560 per month in social security income plus \$948 per month in dividends and  
4 interest. Husband states that he has \$210,128 in cash savings, \$0 in easily saleable  
5 investments, and \$5.3 million in personal property. Husband states that his monthly  
6 estimated expenses total \$8,592. Husband does not list any debts. Husband states he has  
7 paid his attorney \$15,000 to date from his checking account.

8 8) On 8/27/2026, Wife filed a Reply Declaration. Wife states that she has not worked since  
9 July 2022, when the parties sold their house. The plan was for the parties to live off of the  
10 proceeds and draw on retirement. Wife state that she will be 65 in September 2026. Wife  
11 states, "Rebuilding a business that would actually be lucrative is simply not possible,  
12 particularly given 1) wages for progressional organizers in the UK are a fraction of what  
13 they are in the US, and 2) competition from younger organizers." Wife states there is a  
14 disparity in access to funds to pay legal fees. Wife reiterates her request for an advance of  
15 \$500,000 from the Heitner O'Connell Trust account. Wife states, "Mark has shown a  
16 strong propensity to move funds without notice and to hide assets, as pointed out in  
17 Maggie's original Request for Order and as will be discussed further at the hearing.  
18 Maggie is entitled to her fair share of the undisputed community assets, to protect herself  
19 financially, and to avoid any risk of financial misconduct by Mark."

## 20 **B. Findings and Order**

21 1) Under Family Code section 2030, the Court finds that there is a disparity in access to  
22 funds to pay legal fees, Wife has a need, and Husband has the ability to pay the requested  
23 fees in addition to his own attorney's fees and costs. The Court also finds that Wife's  
24 request for \$25,000 in fees is just, reasonable, and necessary. Husband shall pay to Wife  
25 \$25,000 for need-based attorney's fees and costs no later than 9/15/2026.

26 2) **The parties are ordered to appear on at 9:00 AM on 9/3/2026 in Department 404 to:**  
27 **(a) select a future long-cause hearing date on the issue of the validity of the parties'**  
28 **premarital agreement and (b) discuss Wife's request for a \$500,000 from the**  
29 **Heitner O'Connell Trust account. The parties shall be prepared to explain whether**

1           **there is a dispute that the funds held in the Heitner O'Connell Trust account is**  
2           **community property, what is the total balance of that account, and whether**  
3           **Husband would agree to release to Wife \$500,000 less the \$25,000 that Husband**  
4           **contends Wife spent between the parties' purported dates of separation.**

5           3) Wife's attorney shall prepare the Findings and Order After Hearing.

6           4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing  
7           – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to  
8           the other party/counsel for approval, and follow the procedures set forth in CA Rules of  
9           Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was  
10          uncontested, submit the proposed order after hearing directly to the court. Failure to  
11          submit the order after hearing within 10 days may allow the other party to prepare a  
12          proposed order and submit it to the court in accordance with CA Rules of Court, Rule  
13          5.125(d).